ARTICLE 34. To see if the Town will vote to amend Section 8-28 Failure to Clear Sidewalks of Snow and Ice, and Section 8-29 Exceptions, of the Code of By-Laws of the Town of Winchester, as recommended by the Disability Access Commission, with the proposed additions (underlined and bolded) and deletions (crossed out) as shown below; or take any other action in relation thereto.

Section 8-28
Failure to Clear Sidewalks of Snow and Ice.

Except as provided in Section 8-29 of these bylaws, no person owning, possessing or having under his control real estate abutting a sidewalk next to a street, which real estate is being used in whole or in part for any commercial enterprise or as a place to which the public may be expected to resort, shall place any snow or ice on such sidewalk or suffer snow or ice to remain thereon for more than five hours between sunrise and sunset on any business day. **The snow and ice shall be removed from the sidewalk to a width of not less than 36 inches, and any adjoining curb cuts (also known as curb ramps) and accessible ramps to that sidewalk shall be cleared to their full width.** Any person who shall violate this provision may be punished by a fine of ~~not more than $10 for each offense.~~ **$25 for the first offense, $50 for the second offense, and $75 for each subsequent offense.** For the purposes of this section, each successive day during which any violation is committed or continued shall be deemed a separate offense.

Section 8-29
Exceptions.
The preceding Section 8-28 of these bylaws shall not apply:

(a) in any instance involving property which is used solely for residential purposes;
(b) in any instance where, due to weather conditions, snow or ice is evenly spread over a sidewalk and frozen thereto so that removal is difficult, so long as such sidewalk is kept in a safe condition by **the application of calcium chloride,** sanding, or otherwise.
(c) **where permanent physical obstacles, such as lampposts or garbage containers, prevent 36 inches of snow and ice clearance, so long as such sidewalk is cleared to the maximum allowable width.**

(Disability Access Commission)

MOTION: MOVED AND SECONDED that the Town approve Article 34 as printed in the Warrant.

BACKGROUND: *None provided by the Sponsor at time of printing*

Majority Vote Required